

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: CAMPINS, JULIA
HEARING DATE: 08/27/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED. DO NOT INCLUDE ARGUMENT IN THIS EMAIL – LIST THE TOPICS ONLY.** Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1.	9:00 AM	CASE NUMBER:	C24-01458	CASE NAME: KHOI SENDEROWICZ VS. SPECIALIZED LOAN SERVICING, LLC
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FILED BY:

TENTATIVE RULING:

If either party challenges the tentative ruling, the CMC will proceed. If neither party challenges the tentative ruling, the CMC is continued to February 23, 2027, at 8:30 am in Department 10.

Law & Motion

2.	9:00 AM	CASE NUMBER:	C23-02357	CASE NAME: LISA ROSS VS. CHENETTE CARTER
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***HEARING ON MOTION IN RE: VACATE ORDER DENYING MSJ**

FILED BY: ROSS, CHARLIE

TENTATIVE RULING:

Before the Court is Defendant Charlie Ross' Motion to Vacate Order denying Motion for Summary Judgment ("Motion").

The Motion is **denied**.

Procedural Background

Plaintiff Lisa Ross filed her initial complaint on September 21, 2023. The operative First Amended Complaint was filed on December 15, 2023. On December 2, 2025, Defendant Charlie Ross sought and obtained a hearing date for the motion for summary judgment/adjudication. The Order set the hearing date for March 12, 2026. It also stated: "You are ordered to file the motion within 7 calendar days of this order." (All caps removed.)

Over two months later, on February 10, 2026, Defendant Charlie Ross filed the Motion for Summary Judgment. On March 11, 2026, the Court issued a Tentative Ruling ("TR") denying the motion without prejudice due to the Defendant's failure to provide the statutorily required notice of the summary judgment/adjudication motion. Defendant did not contest the TR, so it became the Order of the Court at 4:00 p.m. on March 11. (Local Rule 3.43(2).)

Defendant filed the instant Motion on April 8, 2026.

Initial Considerations

Page Numbers

"Each page must be numbered consecutively at the bottom unless a rule provides otherwise for a particular type of document. The page numbering must begin with the first page and use only Arabic numerals (e.g., 1, 2, 3). The page number may be suppressed and need not appear on the first page." (Cal. R. Ct. 2.109.) In addition, the footer of the document "must contain the title of the paper (examples: 'Complaint,' 'XYZ Corp.'s Motion for Summary Judgment') or some clear and concise abbreviation." (Cal. R. Ct. 2.110.)

Defendant's Motion fails to include page numbers anywhere and there is no footer with any information. Counsel is reminded to comply with the Rules of Court going forward.

When the Court references the Motion papers it begins numbering on the page where the Introduction starts.

Unsigned Declaration

California Code of Civil Procedure section 2015.5 "defines a 'declaration' as a writing that is signed, dated, and certified as true under penalty of perjury." (*Kulshrestha v. First Union Commercial Corp.* (2004) 33 Cal.4th 601, 606.) A declaration that is "not signed under penalty of perjury under the laws of the State of California as required by section 2015.5 ... [has] no evidentiary values" and shall not be considered. (*ViaView, Inc. v. Retzlaff* (2016) 1 Cal.App.5th 198, 217.)

Defense Counsel, Taira Scott, submits a declaration in support of her motion. The declaration, however, is not signed or dated. As such it is without any evidentiary value and will not be considered. Counsel should comply with all Code requirements going forward.

Analysis

Defendant argues that the Court's order denying his MSJ "was issued after the Court determined that the motion had not been filed within seven (7) days as required by the Court's prior order." (Motion at 1:6-8.) Defendant misreads the Court's Order denying the MSJ without prejudice.

While it is true that the Court noted that Defendant failed to file the MSJ within seven days of the Order giving the hearing date, that was **not** the basis for the Court denying the motion. Instead, the Court's order exhaustively explains that Defendant failed to show that the MSJ was properly served on Plaintiff.

The Court went on to explain:

Even if the Court were to find that the documents were properly served, the Motion was not timely served. As outlined above, the notice of motion and supporting papers must be served on the opposing party at least 83 days (when serve via fax/email) before the hearing. Given the March 12, 2026, hearing date, that means that the latest the Motion could be served was December 19, 2025. Even if there were evidence the Motion was served the same date it was filed, that would only be 30 days between notice and the hearing – well short of the required 83 days.

"Because it is potentially case dispositive and usually requires considerable time and effort to prepare, a summary judgment motion is perhaps the most important pretrial motion in a civil case. Therefore, the Legislature was entitled to conclude that parties should be afforded a minimum notice period for the hearing of summary judgment motions so that they have sufficient time to assemble the relevant evidence and prepare an adequate opposition." (*McMahon v. Superior Court* (2003) 106 Cal.App.4th 112, 117-18.) In "light of the express statutory language, trial courts do not have authority to shorten the minimum notice period for summary judgment hearings." (*Id.* at 118.)

Defendant has failed to show that the Motion was properly and timely served on Plaintiff.

The issue was not the failure to file the MSJ within seven days of the Order. The issue was that Defendant failed to provide the statutorily **required** notice of at least 81 days – plus additional time depending on method of service. As noted above, the Court did not and does not have the authority to shorten that time. As such, the Court cannot vacate the order denying Defendant's MSJ.

It is also worth noting that the Order is not a ruling on the merits. It merely found that proper notice was not given and therefore was explicitly made "**without prejudice** to [Defendant] requesting a new hearing date and filing/serving the papers as required by the Code." (March 12 Order.) Defendant is still free to re-file the papers provided he obtains a hearing date and files/serves the papers with proper notice.

Conclusion

Defendant Charlie Ross' Motion to Vacate Order denying Motion for Summary Judgment is **denied**.